

File No.: EXP202303946

RESOLUTION OF SANCTIONING PROCEDURE

From the procedure instructed by the Spanish Agency for Data Protection and based on the following

BACKGROUND

FIRST: A.A.A. (*hereinafter, the complainant) filed a complaint with the Spanish Agency for Data Protection on August 3, 2021. The complaint is directed against MÓNICA DE MALLORCA, S.A. (hereinafter, the respondent). The reasons for the complaint are as follows:

“(…) in a property owned by the respondent, at the entrance to the same, there is a surveillance camera installed that excessively captures the adjacent public road.

Along with the notification, documentary evidence is provided that proves the presence of an external camera on the façade of the property (Annex I).

SECOND: On November 10, 2021, in accordance with Article 65 of the LOPDGDD, the complaint filed by the complainant was admitted for processing.

THIRD: An initial procedure PS/00544/2021 was processed against the respondent, which concluded with the imposition of an administrative fine by Resolution dated 03/21/22 from the Director of this agency in the amount of €1500, for the infringement of Article 5.1 c) of the GDPR, for failing to clarify the presence of the installed devices towards public space.

FOURTH: On March 17, 2023, a Resolution of the sanction imposed against the respondent was issued, as no written communication had been received by this agency through electronic means, rendering the imposed sanction ineffective in order to avoid the respondent's defenselessness.

REVOKE the resolution of procedure EXP202101490, dated March 21, 2022, instructed against MÓNICA DE MALLORCA, S.A., with NIF A07035058.

FIFTH: On April 18, 2023, the Director of the Spanish Agency for Data Protection decided to initiate a sanctioning procedure against the respondent, in accordance with the provisions of Articles 63 and 64 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), for the alleged infringement of Article 5.1.c) of the GDPR, classified in Article 83.5 of the GDPR.

SIXTH: On June 7, 2023, a first document was received from the respondent providing a copy of a Resolution of Archiving by the City Council of Madrid, mentioning urban planning issues.

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SEVENTH: On June 21, 2023, a new document was received from the respondent stating the following regarding the facts:

“From the captured images, it is evidenced that the cameras have privacy masks installed to avoid capturing images of the public road and adjacent homes (…)”

EIGHTH: On July 6, 2023, a was issued in which it is considered that no infringement has been established, as the angle of capture of the cameras is limited, which is why the filing of the current procedure was proposed, being duly notified in a timely manner.

From the actions taken in this procedure and the documentation in the file, the following has been established:

PROVEN FACTS

First. The facts arise from the complaint filed regarding the presence of various devices that excessively capture the public road.

Second. Monica de Mallorca S.A. NIF A070350** is identified as the main responsible party.

Third. From the evidence provided, it is specified that the cameras have privacy masks, not affecting third-party areas.

Fourth: No processing of data from third parties has been established, nor is there any irregularity in the processing of the same.

LEGAL GROUNDS

I

In accordance with the powers granted by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), to each supervisory authority and as established in Articles 47, 48.1, 64.2, and 68.1 of Organic Law 3/2018, of December 5, on Personal Data Protection and the guarantee of digital rights (hereinafter, LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, this organic law, the regulatory provisions issued for its development, and, as long as they do not contradict them, subsidiarily by the general rules on administrative procedures."

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II

In the present case, we proceed to examine the claim dated 03/08/21, through which the "presence of a video surveillance camera" focusing on the public road is reported as disproportionate without justified cause.

Article 5.1 c) of the GDPR states the following: Personal data shall be:

"adequate, relevant and limited to what is necessary in relation to the purposes for which they are processed ('data minimization').

It should be noted that individuals are responsible for ensuring that the installed systems comply with current legislation, demonstrating that they meet all the requirements set forth by the applicable regulations.

The installation of such devices must include the mandatory informational sign, indicating the purposes and the responsible party for the processing of personal data, if applicable.

In any case, the cameras must be oriented towards private space, avoiding intimidating neighboring residents with such devices, as well as monitoring areas of transit without justified cause.

Furthermore, such devices cannot capture images of public space, as this is the exclusive competence of the State Security Forces and Corps.

It is worth noting that even in the case of a "dummy" camera, it must be preferably oriented towards private space, as it is considered that such devices may affect the privacy of third parties, who feel intimidated by the belief that they are subject to permanent recording.

Individuals cannot install devices for capturing images of public space and/or the transit of third parties, except in cases permitted by the regulations.

The purpose of such devices must be the security of the property and its inhabitants, avoiding the infringement of the rights of third parties who may feel intimidated by them.

III

On the date, a written statement of allegations from the respondent is received, denying the facts and providing documentary evidence of what is captured by the camera in question.

At the time of the date, they have a privacy mask, limiting the capture to what is necessary to protect their property and facilities.

Article 22, section 2 of the LOPDGDD (LO 3/2018, December 5) states:

"Images of the public road may only be captured to the extent that it is essential for the purpose mentioned in the previous section."

The principle of the presumption of innocence prevents attributing an administrative infringement when

no evidence has been obtained and verified that substantiates the facts that motivate the accusation or the involvement of the alleged infringer in them. Applying the principle “in dubio pro reo” in case of doubt regarding a specific and determined fact, which obliges, in any case, to resolve such doubt in the most favorable manner for the interested party.

The presumption of innocence must govern without exceptions in the sanctioning system and must be respected in the imposition of any sanctions, as the exercise of the *ius puniendi* in its various manifestations is conditioned on the evidence and a contradictory procedure in which the parties can defend their positions. In this regard, the Constitutional Court in its Judgment 76/1990, of 26/04, considers that the right to the presumption of innocence entails:

“that the sanction is based on acts or evidentiary means of charge or incriminating the reproached conduct; that the burden of proof lies with the accuser, without anyone being obliged to prove their own innocence; and that any insufficiency in the result of the evidence presented, freely assessed by the sanctioning body, must translate into an acquittal.

The presumption of innocence governs without exceptions in the sanctioning system and must be respected in the imposition of any sanction, whether criminal or administrative (TCo 13/1981), as the exercise of the sanctioning right in any of its manifestations is conditioned on the evidence and a contradictory procedure in which the parties can defend their positions.

According to this principle, no sanction can be imposed based on the culpability of the accused if there is no evidentiary activity of charge, which in the assessment of the authorities or bodies called to resolve, destroys this presumption (TCo Auto 3-12-81).

IV

Based on the above, it has not been possible to demonstrate to date that the facts subject to the claim constitute an administrative infringement, as the device in question has privacy masks that limit its capture, therefore, it is agreed to archive the current procedure.

The respondent is reminded that the cameras must remain with the privacy mask, limiting their scope to what is necessary for the protection of their property, and they may be subject to review by this Agency if necessary or if a new claim regarding them arises.

The Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO ORDER the ARCHIVING of the present procedure as no administrative infringement has been demonstrated in the matter at hand.

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SECOND: NOTIFY this resolution to MÓNICA DE MALLORCA, S.A.

Against this resolution, which concludes the administrative procedure in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of the LPACAP, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution, or directly file an administrative contentious appeal before the Administrative Court of the National Court, in accordance with the provisions of Article 25 and in paragraph 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

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Mar España Martí

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